

State of South Carolina

In the General Sessions Court

County of _____ Judicial Circuit

State of South Carolina

v.

Defendant: _____,

AKA: _____

Order for Destruction of Arrest Records

Defendant Information:

Race: _____

Sex: _____

Age: _____

DOB: _____

SSN: _____

SID #: _____

Charges were disposed of in the court indicated below [Select One]:

- ☐ Magistrate
☐ Municipal
☐ General Sessions

It appears that the defendant is entitled to have all records, including any outstanding bench warrants, relating to this offense expunged and destroyed or sealed according to the applicable section of the South Carolina Code of Laws indicated below:

Warrant/Indictment #: _____

Date of Arrest: _____

County of Arrest: _____

Arrest Charge: _____

[Select any that apply]

☐ § 17-1-40. The charge was dismissed, *nolle prossed*, or the defendant was found not guilty on [Fill in Date Charge Dismissed or Defendant was Found Not Guilty] _____.

☐ § 22-5-910. The defendant was convicted of an offense in magistrate, municipal or general sessions court for a crime carrying a penalty of not more than 30 days imprisonment or a fine of \$1,000, or both, or a first offense for unlawful possession of a firearm or weapon carrying a penalty of not more than one year or a fine of one thousand dollars, or both, on [Fill in Date Defendant Convicted of an Offense Carrying a Penalty of 30 Days Imprisonment and/or \$1000 Fine or First Unlawful Firearm/Weapon Offense] _____, that offense did not involve an offense involving the operation of a motor vehicle, and no additional criminal conviction as defined by § 22-5-910 has taken place within three years from date of conviction **or** five years from the date of conviction for first offense criminal domestic violence (conduct occurring prior to June

4, 2015) or third degree domestic violence under § 16-25-20. (*Summary court judge must attest to eligibility if disposed of in that court.*)

☐ § 22-5-920. The defendant was convicted of a first offense as a youthful offender on [Fill in Date Defendant Convicted of a First Offense as a Youthful Offender] _____, that offense did not involve the exceptions enumerated in § 22-5-920, and no additional criminal conviction as defined by § 22-5-920 has taken place during a five-year period following completion of his sentence, including probation and parole as a youthful offender. The sentence was completed on [Fill in Date Sentence Completed for First Offense as a Youthful Offender Conviction] _____.

☐ § 22-5-930(A). The defendant was convicted of a first offense simple possession of a controlled substance under Article 3, Chapter 53, Title 44 or unlawful possession of a prescription drug under § 40-43-86 (EE) on [Fill in Date Defendant Convicted of First Offense Possession of Controlled Substance or Unlawful Possession of Prescription Drug] _____ and no additional convictions, to include out-of-state convictions, have taken place during a three-year period following completion of his sentence, including probation and parole. The sentence was completed on [Fill in Date Sentence Completed for First Offense Possession of Controlled Substance or Unlawful Possession of Prescription Drug] _____.

☐ § 22-5-930(B). The defendant was convicted of a first offense possession with intent to distribute a controlled substance under Article 3, Chapter 53, Title 44 on [Fill in Date Defendant Convicted of First Possession With Intent to Distribute Controlled Substance] _____ and no additional convictions, to include out-of-state convictions, have taken place during a twenty-year period following completion of his sentence, including probation and parole. The sentence was completed on [Fill in Date Sentence Completed for First Possession With Intent to Distribute Controlled Substance] _____.

☐ § 34-11-90(e). The defendant was convicted of a first offense misdemeanor under the fraudulent check law on [Fill in Date Defendant Convicted of First Offense Misdemeanor Under Fraudulent Check Law] _____ and no additional criminal conviction as defined by § 34-11-90(e) has taken place in one year from date of conviction.

☐ § 44-53-450(B). The defendant, who has not previously been convicted of any offense under Article 3, Chapter 53, Title 44 or any offense under any state or federal statute relating to

marijuana, stimulant, depressant, or hallucinogenic drugs, successfully completed all terms of and received a conditional discharge of possession of a controlled substance under § 44-53-370(c) and (d), or § 44-53-375(A).

☐ § 56-5-750(F). The defendant was convicted of a misdemeanor first offense failure to stop motor vehicle when signaled by law enforcement vehicle on [Fill in Date Defendant Convicted of Misdemeanor First Offense Failure to Stop Motor Vehicle When Signaled By Law Enforcement Vehicle] _____ and no additional criminal conviction has taken place for three years after completion of the sentence. The sentence was completed on [Fill in Date Sentence Completed for Misdemeanor First Offense Failure to Stop Motor Vehicle When Signaled By Law Enforcement Vehicle] _____.

SLED verifies the offense listed above is eligible for expungement [Select One]:

☐ Yes

☐ No

SLED: _____

Date: _____

It is ordered that all records relating to such arrest and subsequent discharge, including associated bench warrants, pursuant to the above-referenced section be expunged and destroyed and that no evidence of such records pertaining to such charge shall be retained by any municipal, county or state agency except as follows:

- (1) arrest and booking record, associated bench warrants, mug shots and fingerprints of the defendant shall be retained under seal pursuant to § 17-1-40, by law enforcement, detention, correctional and prosecution agencies for three years and one hundred twenty days, and law enforcement and prosecution agencies may retain the information indefinitely under seal for purposes set forth in § 17-1-40 (B)(1)(a) and (b); under § 17-1-40 (C)(1), this order does not require the destruction of evidence gathered, unredacted incident and supplemental reports, and investigative files, which statutorily shall be retained under seal for three years and one hundred twenty days, and may be retained indefinitely under seal for purposes set forth in § 17-1-40 (C)(1); and information retained under seal by law enforcement, detention, correctional and prosecution agencies pursuant to § 17-1-40 is not a public information and is exempt from disclosure, except by court order;

- (2) probation records retained by S.C. Department of Probation, Pardon, and Parole Services pursuant to § 17-1-40 (B)(3) whose charges were dismissed by conditional discharge pursuant to § 44-53-450;
- (3) nonpublic information retained by S.C. Law Enforcement Division (SLED) pursuant to § 22-5-910, § 22-5-920, § 34-11-90(e), and § 44-53-450; and
- (4) nonpublic information retained by SLED and S.C. Department of Public Safety/Department of Motor Vehicles pursuant to § 56-5-750(F), as well as any nonpublic records retained by S.C. Commission on Prosecution Coordination as required by law.

Defense Counsel _____
(if represented):

S.C. Bar No.: _____

To be completed by Summary Court Judge if charge disposed of in that court:

I Attest that the defendant is eligible for expungement pursuant to § 22-5-910, § 34-11-90(e), or § 44-53-450(B).

I Certify (check one):

- ☐ The defendant was fingerprinted and the summary court has coordinated with SLED and confirmed the criminal charge is statutorily appropriate for expungement.
- ☐ The defendant was not fingerprinted and the summary court has coordinated with the arresting law enforcement agency and confirmed that no fingerprints were taken from the defendant for this charge.

Summary Court Judge: _____

Printed/Typed Name: _____

Date: _____

To be completed by Circuit Solicitor: The Circuit Solicitor consents, declines to consent, or has determined the applicant is ineligible for expungement (select only one, sign, print name, and date).

- ☐ Consents (charge dismissed): The charge covered by this order was not dismissed or *nolle prossed* because of successful completion of the Pre-Trial Intervention Program, Traffic Education Program, Alcohol Education Program, or any other statutorily authorized diversion program operated by a solicitor's office. The charge covered by this order can legally be expunged.
- ☐ Consents (charge considered dismissed/*nolle prossed*): The records and/or case management system of the office of the Circuit Solicitor do not reflect that the charge covered by this order is currently pending. The Circuit Solicitor and/or staff has searched, but found no court record, SLED record, prosecutorial agency record, and/or law enforcement agency record that shows a disposition for the charge. The Circuit Solicitor interprets the absence of any such records as evidence of a dismissal or *nolle prosequi* unrelated to successful completion of the Pre-Trial Intervention Program, Traffic Education Program, Alcohol Education Program, or any other statutorily authorized diversion program operated by a solicitor's office. The date entered below by the Circuit Solicitor will be treated as the dismissal and/or discharge date for the charge for expungement purposes.
- ☐ Declines to consent.
- ☐ Determined ineligible for expungement.

Circuit Solicitor: _____

Printed/Typed Name: _____

Date: _____

It is so Ordered.

Circuit Court Judge: _____

Judge Code: _____

Date: _____

For SLED internal use only:

Expunged by SLED by: _____

Date: _____